

HOUSE No. 157

The Commonwealth of Massachusetts

PRESENTED BY:

Patrick Joseph Kearney

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to prohibiting billboard advertisements of non-prescription marijuana.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Patrick Joseph Kearney</i>	<i>4th Plymouth</i>	<i>1/7/2025</i>

HOUSE No. 157

By Representative Kearney of Scituate, a petition (accompanied by bill, House, No. 157) of Patrick Joseph Kearney relative to prohibiting billboard advertisements of non-prescription marijuana. Cannabis Policy.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 113 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to prohibiting billboard advertisements of non-prescription marijuana.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 4 of chapter 94G of the General Laws, as appearing in the 2020
2 Official Edition, is hereby amended by striking in line 231 after the word "misleading;" the
3 following:-

4 "(2) a prohibition on advertising, marketing and branding by means of television, radio,
5 internet, billboard or print publication unless at least 85 per cent of the audience is reasonably
6 expected to be 21 years of age or older, as determined by reliable, up-to-date audience
7 composition data"

8 and inserting in place thereof the following:- "(2a) a prohibition on advertising,
9 marketing and branding by means of billboards; (2b) a prohibition on advertising, marketing, and

10 branding by means of television, radio, internet, or print publication unless at least 85 per cent of
11 the audience is reasonably expected to be 21 years of age or older, as determined by reliable, up-
12 to-date audience composition data"

13 SECTION 2. Said section 4 of said chapter 94G of the General Laws, as appearing in the
14 2020 Official Edition, is hereby amended by striking in line 258 after the word "unless" the
15 following:- "at least 85 per cent of the audience is reasonably expected to be 21 years of age or
16 older, as determined by reliable, up-to-date audience composition data" and inserting in place
17 thereof the following:- "entry is restricted to those 21 years of age or older."

18 SECTION 3. Said section 4 of said chapter 94G of the General Laws, as appearing in the
19 2020 Official Edition, is hereby amended by inserting in line 265 after the word "a" the word
20 "conspicuous."